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Devendra Mohan And 2 Others v. State Of M.P

Madhya Pradesh High Court (Mar 3, 2009)

CASE NO.

Criminal Appeal No. 305/1998, Criminal Appeal No. 275/1998, Criminal Appeal No. 305/1998 and Criminal Appeal No. 275/1998

JUDGES

- R.S Garg, J.

ATTORNEY

- Shri N.P Dubey, learned counsel for the appellants.
- Shri Samdarshi Tiwari, learned G.A for the respondent/State.

SUMMARY**Factual and Procedural Background**

Appellants Devendra Mohan and Durga Prasad filed Criminal Appeal No. 305/1998, and accused Durga Prasad filed Criminal Appeal No. 275/1998, challenging the judgment dated 31.1.1998 passed in Sessions Trial No. 107/1995 by the First Additional Sessions Judge, Mandla. The trial court convicted each appellant under Sections 395 and 332 of the Indian Penal Code (I.P.C.), sentencing them to rigorous imprisonment and fines. The prosecution case arose from an incident on 4.9.1984, where P.W.1 Anil Kumar Shukla, a constable, used force to disperse a violent mob, after which the appellants allegedly assaulted him and snatched his cane and cap. A First Information Report was registered, investigation was conducted, and charges were framed leading to the trial and conviction. The appellants denied the charges and appealed against the conviction and sentence.

Legal Issues Presented

1. Whether the appellants were rightly convicted under Section 395 I.P.C. for robbery.
2. Whether the appellants were rightly convicted under Section 332 I.P.C. for voluntarily causing hurt to a public servant discharging official duty.
3. Whether the evidence, including the injury report and testimonies, suffices to sustain the convictions.

4. Whether the appellants are entitled to relief under the Probation of Offenders Act, 1958, considering the delay in trial and circumstances.
5. Whether the accused Govind Prasad Jaiswal should be acquitted due to non-naming in the First Information Report.

Arguments of the Parties

Appellant's Arguments

- P.W.1 Anil Kumar Shukla was unauthorizedly using the cane; the appellants snatched it in self-defense during a scuffle.
- The prosecution developed a case under Section 395 I.P.C. opportunistically.
- The injury report should not be admitted as the doctor who prepared it was not examined.
- P.W.1 was not supported by independent witnesses; P.W.5's statements were casual and insufficient for conviction.
- Non-examination of the investigating officer was fatal to the prosecution's case.
- Even if P.W.1's statement is accepted fully, offences under Sections 395 and 332 I.P.C. are not made out.

State's Arguments

- Cross-examination of P.W.1 did not show he was engaged in unauthorized caning.
- Causing hurt to a police officer discharging duty is punishable under Section 332 I.P.C.
- The accused committed dacoity with unknown persons and were rightly convicted by the trial court.

Table of Precedents Cited

No precedents were cited in the provided opinion.

Court's Reasoning and Analysis

The court analyzed the factual matrix and legal provisions to assess the correctness of the convictions. It found that P.W.1 Anil Kumar Shukla was discharging his official duty and there was no evidence he was engaged in unauthorized caning; hence, the appellants were not justified in snatching the cane. The court accepted P.W.5's corroboration of P.W.1's account regarding assault and snatching of property but noted the injury report was unproved due to non-examination of the doctor. The court held that the offence under Section 332 I.P.C. was not made out as there was no sufficient proof of hurt caused to the public servant. Regarding the charge under Section 395 I.P.C. (robbery), the court

examined the definitions of robbery and dacoity under Sections 390 and 391 I.P.C. and concluded that the appellants' actions did not amount to robbery or dacoity because there was no evidence of intention to commit *theft* or causing hurt in the process. The act of snatching the cane and cap was held to be an offence under Section 379 I.P.C. (*theft*). Consequently, the appellants were acquitted of robbery charges and convicted under Section 379 I.P.C. The court also acquitted accused Govind Prasad Jaiswal due to his non-naming in the First Information Report without sufficient explanation. Considering the long delay of over 24 years in trial disposal and the appellants' non-professional involvement, the court applied Section 4 of the Probation of Offenders Act, 1958, releasing the appellants on bond with conditions rather than immediate sentencing.

Holding and Implications

The appeals are allowed in part. The appellants are acquitted of charges under Sections 395 and 332 I.P.C. and convicted under Section 379 I.P.C. The accused Govind Prasad Jaiswal is acquitted of all charges. Instead of immediate sentencing, the appellants are released on probation under Section 4 of the Probation of Offenders Act, 1958, subject to bond conditions. The fines recovered are to be paid to the victim, and any deposits by the acquitted accused are to be refunded.

The decision results in modification of convictions and sentences without setting a new precedent. It emphasizes careful application of legal definitions of robbery, dacoity, and *theft*, and highlights the court's discretion in granting probation in cases with significant trial delays and mitigating circumstances.

JUDGMENT

ORAL ORDER

Per : R.S Garg, J :-

Appellant Devendra Mohan and Durga Prasad have filed Criminal Appeal No. 305/1998 while accused Durga Prasad has filed Criminal Appeal No. 275/1998 being aggrieved by the judgment dated 31.1.1998 passed in Sessions Trial No. 107/1995 by learned First Additional Sessions Judge, Mandla convicting each of the appellant to undergo R.I for seven years and pay fine of Rs. 1000; in default of fine to undergo R.I for three months under **Section 395 I.P.C** and to undergo R.I for one year and pay fine of Rs. 500/-, in default of payment of fine to undergo R.I for two months under **Section 332 I.P.C**; all jail sentence to run concurrently, have filed these appeals.

2. The prosecution case in short is that on 4.9.1984 P.W.1 Anil Kumar Shukla was on the place of his duty as a constable, had used some force to disburse a violent mob. All the appellants came near him gave him a beating and, thereafter looted away his cane and cap. The matter was reported to the police, the investigation was undertaken and, thereafter challan was filed somewhere in the year 1985.

3. The First Information Report Ex.P/1 was registered at Police Station G.R.P Nainpur at

about 5.20 p.m in connection with the offence which was committed at 3.30 p.m. Immediately after the first information report the victim was referred to the hospital for examination and repair of his injuries. The injury report Ex.P/2 is dated 5.8.1984

4. As the accused persons denied commission of the offence they were subjected to trial. On completion of the trial the learned court below acquitted the accused persons of the offences punishable under **Section 353 I.P.C** but however, convicted and sentenced them as referred to above.

5. Shri Dubey, learned counsel appearing for all the appellants, submitted that from a bare perusal of the statements of P.W.1 Anil Kumar Shukla it would clearly appear that he was unauthorizedly caning. The accused persons in right of their defence had snatched the cane and it would also appear that in such a scuffle for stopping an agitation P.W.1 Anil Kumar Shukla lost his cap but, to encash the opportunity the prosecution agency developed a case under **Section 395 I.P.C**. It is also submitted by him that from the statements of P.W.3 Santosh Kumar it would only appear that he was producing before the Court the injury report but however, non-examination of the doctor who prepared the report, the injury report cannot be admitted in evidence. It is also submitted that P.W.1 Anil Kumar Shukla is not supported by independent witnesses and statements of P.W.5 Arvind Kumar are just casual and do not make out a case for conviction of the accused persons. It is also submitted by him that in case like present non-examination of the investigation officer would be fatal and each of the accused is entitled to be acquitted. It is also submitted by him that in the alternative if the entire statement of P.W.1 Anil Kumar Shukla is accepted to be correct then too an offence under **Section 395 and 332 I.P.C** is not made out.

6. Shri Tiwari, learned counsel for the State however, submitted that from the cross-examination of P.W.1 Anil Kumar Shukla it does not appear that he was engaged in caning. It is submitted by him that if a police personnel was present on the spot and was discharging his duties then causing him hurt would be an offence punishable under **Section 332 I.P.C**, the accused persons had committed dacoity with unknown persons therefore each of the appellant has been rightly convicted by the trial Court.

7. P.W.1 Anil Kumar Shukla in his examination-in-chief had stated that accused persons viz. Durga Prasad, Ghanshyam Namdeo, Govind Jharia, Munna Rajak and Durga Tiwari caused hindrance in discharge of his official duty and had snatched his cane and cap and had also beaten him. He nowhere said that he was engaged in caning. Even in the cross-examination it has not been suggested to him that he was engaged in caning. His only submission was that he was discharging his duty under directions of Shri Shukla and was disbursing the violent mob. It has not been suggested to him that he was engaged in unauthorized caning, therefore, the accused persons in right of their defence snatched away the cane. Under the circumstances, I am unable to hold that P.W.1 Anil Kumar Shukla was engaged in unauthorized caning and the accused persons were justified in snatching the cane.

8. On the material aspect P.W.1 Anil Kumar Shukla is supported by P.W.5 Arvind Kumar who clearly stated that the accused persons were beating the complainant and they had

snatched his cane and the cap.

9. So far as injury report Ex.P/2 is concerned, the same is not proved because the doctor who had examined the injured has not been examined. Under the circumstances, I hold that the enquiry report Ex.P/2 is not proved. In absence of the proof of the injury report it can at best be held that some force was used against P.W.1 Anil Shukla. It is however to be noted that for Section 353 the appellants have been acquitted.

10. Once it is held that the victim was not beaten especially when he was discharging his official duty then offence under Section 332 would not be made out. In my opinion the learned Court below was unjustified in holding that the accused persons voluntarily caused hurt to P.W.1 Anil Kumar Shukla a public servant while he was discharging his duty as a public servant. True it is that the statement of Anil Kumar Shukla says that he was deterred from discharging his duties but except the bald statement made by him that he was deterred from discharging his duty nothing has come on record. I acquit the accused persons of the charge punishable under Section 332 of I.P.C

11. It is also to be seen from the statement of P.W.1 that in the First Information Report he had not named accused Govind Prasad Jaiswal. When he was confronted with the first information report, he however stated that as he did not know the name of the accused, therefore name was not mentioned. In the absence of a justified reason in not giving name of Govind Prasad Jaiswal as one of the assailant, I am of the opinion that assailant Govind Prasad Jaiswal deserves to be acquitted of all the charges. He is accordingly acquitted.

12. The question for consideration now would be that whether the accused persons have been rightly convicted under **Section 395 I.P.C**

13. Section 390 defines robbery. It reads as under :

“390. Robbery - In all robbery there is either *theft* or extortion.

When *theft* is robbery - *Theft* is “robbery” if, in order to the committing of the *theft* , or in committing the *theft* , or in carrying, away or attempting to carry away property obtained by the *theft* , the offender, for that end, voluntarily cause or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery - Extortion is “robbery” if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

Section 391 I.P.C defines dacoity. It reads as under :

“391. Dacoity : when five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to

five or more, every person so committing, attempting or aiding, is said to commit “dacoity”

14. According to Section 390 *theft* is robbery, if, in order to the committing of the *theft* , or in committing the *theft* , or in carrying away or attempting to carry away property obtained by the *theft* , the offender, for that end, voluntarily causes or attempts to cause any person death or hurt or wrongful restraint etc. In the present case from the statements of P.W.1 Arvind Kumar Shukla it does not appear that the intention of the accused persons was to commit either robbery or *theft* . It only appears that the accused persons who were a part of the mob and were in the agitation or procession, felt aggrieved by the action of P.W.1 and, therefore snatched away his cap and cane. Such snatching away of the cap and cane at best would be an offence falling under **Section 378 I.P.C** which is made punishable under **Section 379 I.P.C**

15. Present is not a case where five or more persons committed dacoity or attempted or committed *theft* and while committing *theft* or while carrying away the property in *theft* had caused injury. When the intention of the accused is to commit *theft* and either in course of committing *theft* or in carrying away property he causes injury then only an offence under Section 390 and/or an offence under **Section 391 I.P.C** is made out.

16. In the present case there is nothing on record to show that the accused persons while committing *theft* or while carrying away property had caused the injury. As I have not relied upon the evidence of the prosecution in connection with the injury suffered by P.W.1 Anil Kumar Shukla, requirements of Sections 390/391 are not fulfilled. But however the accused persons cannot escape their liability under **Section 379 I.P.C** The accused persons are acquitted of the charges punishable under **Section 395 I.P.C** instead they are convicted under **Section 379 I.P.C**

17. The parties are heard on the question of sentence. Shri Dubey, learned counsel for the appellants however submitted that the alleged offence was committed on 4.9.1984, the challan was filed in the year 1985 that too showing the accused persons absconding and, thereafter the matter was committed to the Court of Sessions in the year 1996. It is submitted by him that looking to the trauma undergone by each of the accused and as the accused persons are not professionals and it also appears from the record that they were a part of the mob which was engaged in agitation the accused persons deserve to be dealt with under [provisions of the Probation of Offenders Act, 1958](#) Shri Tiwari, learned counsel for the State on the other hand submitted that lapse of 24 years in disposal of the trial upto this level would not be a ground to deal with the accused persons who had taken away the property of a police constable.

18. Taking into consideration the totality of the circumstances and that the accused persons are facing the trauma for last 24 years and more, I hold that each of the appellant viz. Durga Prasad s/o Kaushal Prasad Tiwari, Devendra Mohan s/o Bhagwandas Jaiswal and Durga Prasad s/o Dalchand Shrivastava be dealt with under [Section 4 of the Probation of Offenders Act, 1958](#). Instead of sentencing each of them at once, I hereby direct that each of them be released on his entering into a bond in sum of Rs. 2000/- with one surety in the

like amount to appear before the trial Court when called upon during a period of one year to receive sentence and in the meanwhile, to keep the peace and be of good behaviour. Each of the appellant who is on bail shall appear before the trial Court on or before 17.4.2009 and shall furnish the requisite bonds. If by the date so fixed the appellant/appellants do not appear before the trial Court and furnish the requisite bonds then the trial Court shall be entitled to issue non bailable warrants to secure attendance of the defaulting accused and send him to jail to undergo R.I for one year.

19. The amount of fine which has been recovered from the appellants shall be treated to be deposit under [Section 5 of the Probation of Offenders Act, 1958](#), the entire amount of Rs. 1500/- shall be paid to P.W.1 Anil Kumar Shukla. The amount if any deposited by Govind Prasad Jaiswal be refunded back to him. Both the appeals to the extent indicated above are allowed.